

25STCV33746 25STCV33746

County: los-angeles

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Case Number: 25STCV33746 Hearing Date: July 16, 2026 Dept: 512

HEARING DATE: Thurs., July 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Cha

v. Moon COMP.

FILED: 11-18-25

CASE NUMBER: 25STCV33746 FAC FILED: 05-04-26

NOTICE: OK

PROCEEDINGS: DEMURRER

TO THE FIRST AMENDED COMPLAINT AND MOTION TO STRIKE

MOVING PARTY: Defendant

Jeong Mee Moon

RESP. PARTY: Plaintiffs Bok Hee Cha and Eminent

Hospice Care, Inc.

DEMURRER WITH MOTION TO STRIKE

(CCP §§ 430.10, et seq.; 435;
436)

TENTATIVE RULING:

Defendant Jeong Mee Moon's

Demurrer to Amended Complaint is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND IN PART

and OVERRULED IN PART.

The Demurrer is SUSTAINED

WITH LEAVE TO AMEND as to the first cause of action. The Demurrer is OVERRULED
as to the third cause of action.

Defendant Jeong Mee Moon's

Motion to Strike Second Cause of Action of Amended Complaint is DENIED.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on June 23, 2026 ☐ Late ☐ None

REPLY: Filed

on June 25, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On November 18, 2025, Plaintiffs Bok

Hee Cha ("Cha") and Eminent Hospice Care, Inc. ("EHC") ("Plaintiffs") filed a
complaint against Defendants Jeong Mee Moon ("Defendant") and Does 1-20,
alleging causes of action for Breach of Written Contract, Fraud and Deceit,
Unjust Enrichment, and Money Had and Received.

On April 3, 2026, the Court sustained

Defendant's Demurrer to the Complaint with leave to amend only as to the first

cause of action against EHC and second cause of action, and otherwise overruled the Demurrer. (4/3/26 Order.)

On May 4, 2026, Plaintiffs filed a First Amended Complaint ("FAC") against Defendant and Does 1-20, alleging causes of action for Breach of Written Contract, Breach of Contract Third Party Beneficiary, Fraud and Deceit, Unjust Enrichment, and Money Had and Received.

On June 5, 2026, Defendant filed the instant Demurrer to Amended Complaint (the "Demurrer") and Motion to Strike Second Cause of Action of Amended Complaint (the "Motion").

On June 23, 2026, Plaintiffs filed an Opposition.

On June 25, 2026, Defendant filed a Reply.

On June 29, 2026, the Court continued the hearing on the Demurrer and Motion.

II.

Allegations
in the FAC

Since April 2019, EHC's shares were equally owned by Cha and Defendant. (FAC, ¶¶ 11-12.) In or about May 2024, Cha and Defendant entered into a written agreement wherein Defendant agreed to sell her fifty thousand shares of EHC, representing 50 percent ownership, to Cha, and Cha agree to purchase these shares for \$500,000 per the terms of the written agreement. (FAC, ¶ 14.) The agreement contains a liability allocation provision that, in sum, states any liability incurred by EHC prior to the closing date of the aforementioned transaction is to be "assumed 50% each by both Defendant Moon and [Plaintiff] Cha." (FAC, ¶ 15.)

In May 2024, the transaction successfully closed and Cha timely wire-transferred \$500,000 to Defendant in consideration of the purchase of Defendant's shares in EHC. (FAC, ¶ 16.)

In July 2025, EHC received a letter

from the Center of Medicare & Medicaid Services ("CMS") demanding reimbursement for a \$306,732.14 overpayment to EHC that occurred during the "Cap Year ending 09/30/23." (FAC, ¶ 17, Exh. B.) Plaintiffs believe that the overpayment to CMS "was the result of CMS' audit on the incorrect and/or inaccurate billing requests made to CMS by EHC under the direction of Defendant Moon during the CAP Year ending 09/30/2023 who was responsible for the billing and accounting activities of EHC during the period." (FAC, ¶ 18.)

Cha demanded Defendant pay 50 percent of the CMS reimbursement amount per the agreement, but Defendant failed to respond or pay 50 percent of the CMS reimbursement amount. (FAC, ¶¶ 19-21, Exhs. C-D.) As a result, Cha, on behalf of EHC, proposed and began payments on a six-month installment payment plan to CMS. (FAC, ¶¶ 21-23, Exhs. E-F.)

As of the date of the FAC, Defendant "has not made any contribution to the foregoing reimbursement payments made to CMS." (FAC, ¶ 24.)

III.

Legal

Standard

"As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV.

Discussion

A. Meet and Confer

Code of Civil Procedure

section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Defendant filed a declaration attesting that the parties telephonically met and conferred regarding the issues raised in the Demurrer prior to filing as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Colorado Decl.) The parties were unable to reach a resolution. (Demurrer, Colorado Decl.)

Thus, the Court finds the meet and confer requirement is satisfied.

B. Demurrer

Defendant demurs to the first cause of

action solely as to EHC and to the third cause of action for failure to state sufficient facts to constitute a cause of action. (Demurrer, p. 3.) As to the first cause of action for breach of contract, Defendant states that EHC is not a party to the written agreement between Cha and Defendant, and thus Plaintiffs cannot allege a cause of action for breach of contract as to EHC. (Demurrer, pp. 6-7.) As to the third cause of action for fraud and deceit, Defendant contends the FAC merely alleges a breach of contract claim, which does not constitute fraud. (Demurrer, pp. 8-9.)

In Opposition, Plaintiffs concede that the first cause of action is only applicable to Cha and not EHC, and are amenable to amending the FAC to make this distinction clearer should the Court require. (Opp., p. 5.) Plaintiffs state they have also “already extended this offer to Defendant at the previous meet-and-confer telephone conference.” (Opp., p. 5.) As to the third cause of action, Plaintiffs state the FAC pleads sufficient facts to state a fraud and deceit cause of action as paragraph 45 of the FAC alleges oral representations made by Defendant that are distinct and separate from the facts making up the first and second causes of action. (Opp., pp. 6-7.)

In Reply, Defendant addresses Plaintiffs’ concession regarding the first cause of action and stipulate that the “First Cause of Action may be pursued, but the ruling on this demurrer should make clear that it may be pursued only on behalf of Bok Hee Cha. Eminent Hospice Care is not the proper plaintiff to the First Cause of Action and is not the injured party.” (Reply, pp. 1-2.) Defendant reiterates the arguments made in the Demurrer as to the third cause of action. (Reply, pp. 3-4.)

Cause of Action No. 1 – Breach of Contract

“To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages to the plaintiff. [Citation.]” (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.) “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 229, 307.) “A written

contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect. [Citations.]” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

Here, Plaintiffs concede that the first cause of action is only applicable to Cha and not EHC, and are amenable to amending the FAC to make this distinction clearer should the Court require. (Opp., p. 5.) Plaintiffs state they have also “already extended this offer to Defendant at the previous meet-and-confer telephone conference.” (Opp., p. 5.) In Reply, Defendant stipulates that the “First Cause of Action may be pursued, but the ruling on this demurrer should make clear that it may be pursued only on behalf of Bok Hee Cha. Eminent Hospice Care is not the proper plaintiff to the First Cause of Action and is not the injured party.” (Reply, pp. 1-2.)

Given the Court’s prior ruling and the parties’ concessions and stipulations in the briefings to the Demurrer, the Demurrer as to the first cause of action is SUSTAINED WITH LEAVE TO AMEND pursuant to the terms of the parties’ stipulation.

Cause of Action No. 3 – Fraud

The elements of fraud are: “ ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184, citing Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) A cause of action for fraud must be “ ‘pled specifically; general and conclusory allegations do not suffice. ... “ ‘This particularity requirement necessitates pleading facts which “ ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” ’ ” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184, citing Lazar, supra, 12 Cal.4th at p. 645.)

“ ‘A promise made without any intention of performing it’ constitutes actual fraud.” (Church of Merciful Savior v. Volunteers of America, Inc. (1960) 184 Cal.App.2d 851, 858.) “Civil Code section 1566 provides that consent to a contract is voidable when obtained by, among other things, fraud. Civil Code section 1571 distinguishes between actual fraud and constructive fraud.... Civil Code section 1572 is

limited to acts committed by one party to a contract with intent to deceive another party to the contract or to induce someone to enter into a contract.” (Masters v. San Bernardino County Employees Retirement Assn. (1995) 32 Cal.App.4th 30, 41.)

Here, the FAC alleges:

On or about May 1, 2024, at the office of her counsel S. Calvin Myung’s office, Defendant Moon met Plaintiff Cha and orally represented to Plaintiff Cha that upon successful closing of the Agreement between the parties, Defendant Moon will remain liable for Fifty Percent (50%) of any and all unknown and outstanding liabilities of EHC which were incurred on or prior to the Closing Date of the Agreement with the exception of those liabilities outlined in Exhibit “A” of the Agreement. At the time Defendant Moon made the foregoing promise to Plaintiff Cha, Defendant Moon had no intention of performing it. The foregoing promise was made by Defendant Moon with the intent to induce Plaintiff Cha to enter into the Agreement and purchase Defendant Moon’s Fifty Thousand (50,000) shares in EHC and pay Defendant Moon a sum of Five Hundred Thousand Dollars (\$500,000.00) plus Eighty Thousand Dollars (\$80,000.00) in additional consideration. Plaintiff Cha, at the time the foregoing promise was made and at the time Plaintiff Cha performed her promise under the Agreement as herein alleged, was ignorant of Defendant Moon’s secret intentions not to perform as promised; and Plaintiff Cha could not, in the exercise of reasonable diligence, have discovered Defendant Moon’s secret intentions.

In justifiable reliance on the foregoing promise of Defendant Moon, Plaintiff Cha Wilshire Blvd., Suite 2150 Los Angeles, CA 90010-2003 Kim Park Choi & Yi paid Five Hundred Thousand Dollars (\$500,000.00) plus Eighty Thousand Dollars (\$80,000.00) in additional consideration to Defendant Moon for the purchase Fifty Thousand (50,000) shares of EHC from Defendant Moon. If Plaintiff Cha had known the actual intentions of Defendant Moon not to perform the foregoing promise, Plaintiff Cha would not have taken such action.

As a proximate result of the fraudulent conduct of Defendant Moon as herein alleged, Plaintiffs were induced to incur the liability of Three Hundred Twenty-One Thousand Fifty-Seven Dollars and Seventy-Six Cents (\$321,057.76) claimed by CMS on the CMS’ Reimbursement Demand in addition to the payment of Five Hundred Eighty Thousand Dollars

(\$580,000.00) in consideration under the Agreement to Defendant Moon.

Aforementioned conduct of Defendant

Moon was an intentional misrepresentation, deceit, and/or concealment of a material fact known to Defendant Moon with the intention on the part of Defendant Moon of thereby depriving Plaintiffs of property or legal rights or otherwise causing injury, and was despicable conduct that subjected Plaintiffs to a cruel and unjust hardship in conscious disregard of Plaintiffs' rights, so as to justify an award of exemplary and punitive damages

(FAC, ¶¶ 45-51, Exh. A.)

Accordingly, the Court finds that the

FAC's allegations suffice to plead fraud – specifically, the FAC adequately alleges Defendant made a promise without any intention of performing as it pertains to the agreement, and Plaintiff's consent to contract with Defendant occurred due to this fraud. (See *Masters*, supra, 32 Cal.App.4th at p. 41.)

Thus, the

Demurrer as to the third cause of action is OVERRULED.

Accordingly, the Demurrer is SUSTAINED

IN PART and OVERRULED IN PART.

Where a demurrer is

sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman*, supra, 18 Cal.3d at p. 348.) "If there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman*, supra, 70 Cal.2d at p. 245). Given the arguments raised in the Opposition, the Demurrer to the FAC is SUSTAINED WITH LEAVE TO AMEND as to the first cause of action.

C.

Motion

to Strike

Defendant moves to strike the second

cause of action from the FAC on the grounds that Plaintiffs did not seek leave of court to add this new cause of action to the FAC. (Motion, pp. 10-11.)

In Opposition, Plaintiffs contend that the Court's ruling to sustain Defendant's prior demurrer with 30 days leave to amend did not limit the Plaintiffs' ability to add a cause of action to address the Court's concerns with Plaintiffs' contract assertions as to EHC. (Opp., pp. 7-8.) To the contrary, Plaintiffs state that the addition of the second cause of action was properly in compliance with the Court's prior ruling. (Opp., p. 8.)

In Reply, Defendant states that the "new Second Cause of Action for breach of contract based on a theory of third-party beneficiary is a completely different cause of action from the First Cause of Action" alleged in the original Complaint. (Reply, p. 2.) Defendant states that this addition to the complaint exceeds the scope of amendment authorized by the Court in its prior ruling. (Reply, p. 3.)

Here, the Court finds the new cause of action does not exceed the bounds of amendment previously authorized by the Court in its 4/2/26 ruling. (4/3/26 Order.) Indeed, the Court finds that the new separate cause of action addressing Plaintiffs' third-party beneficiary allegations for EHC directly addresses the Court's concerns with the Complaint raised on page 3 of its 4/3/26 order. (See 4/3/26 Order, p. 3.)

As such, the Motion is DENIED. Given that Defendant moved solely to strike the second cause of action from the FAC and did not demur to the second of cause of action, the Court need not further address the content of the FAC's second cause of action at this time.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Jeong Mee Moon's Demurrer to Amended Complaint is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND IN PART and OVERRULED IN PART.

The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the first cause of action. The Demurrer is OVERRULED as to the third cause of action.

Defendant Jeong Mee Moon's

Motion to Strike Second Cause of Action of Amended Complaint is DENIED.

Moving party is ordered to

give notice.